

		approach adopted in the cases applying those analogous statutes, under which partial success reduces but does not eliminate the entitlement to attorney fees, therefore should be applied here.”; <i>see also Mann v. Quality Old Time Service, Inc.</i> (2006) 139 Cal.App.4th 328, 345.) Based on the court’s own knowledge, the nature of the work performed in this case, and the evidence provided by the parties, the Court reduces the requested amount of fees for work on unsuccessful claims and some duplication of effort between the two billing attorneys. The Court finds that \$62,886 fairly compensates Cross-Defendants for the results achieved in pursuing the Anti-SLAPP motion and avoids reimbursing them for the objectives that were not attained. Centennial and Mark are ordered to serve notice.
10.	2025-1521814 Nguyen vs. Nguyen	Plaintiff Paul Nguyen’s motion for summary adjudication on his second amended complaint (“SAC”) against defendants Julie H. Dao and JD Escrow is continued to October 14, 2026. No later than September 25, 2026, Plaintiff is to file a revised separate statement of material undisputed facts in compliance with Code of Civil Procedure section 437c(b)(1) and CRC 3.1350(d), (h). Defendants may file a response to the revised separate statement no later than October 2, 2026. Code of Civil Procedure section 437c(b)(1) requires each motion for summary judgment or adjudication to be accompanied by a separate statement “setting forth plainly and concisely all <i>material facts</i> that the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence.” (Italics added.) California Rules of Court, rule 3.1350(d)(2) states: “The separate statement should include only material facts and not any facts that are not pertinent to the disposition of the motion.” Under the Rules of Court, “Material facts’ are facts that relate to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion and that could make a difference in the disposition of the motion.” CRC 3.1350(a)(2). CRC 3.1350 also sets forth the required form of the separate statement. Each verbatim restatement of an issue for summary adjudication is to be directly followed by the material facts and supporting evidence the moving party relies on for summary adjudication of that issue. CRC 3.1450(d)(1) and (3), (h). Plaintiff’s separate statement does not comply with these directives.

Plaintiff's separate statement sets out all four issues verbatim and, then, *below* all of these re-statements, sets out 95 undisputed statements of fact ("UMF") in about 20 pages. These are not broken down by noticed issue. Rather, for each noticed issue Plaintiff cites the statements of fact in support. For example, for Issue no.2: "Supporting UMFs: UMFs 1–10, 15–20, 21–34, 61–65, 76–78, and 84–89."

This is not in compliance with CRC 3.1350(d) and (h).

This statement and the opposing separate statement (§ 10:188) are intended to permit the judge to *determine quickly* whether the motion is supported by sufficient undisputed facts.

[*Ducksworth v. Tri-Modal Distribution Services* (2020) 47 CA5th 532, 540, 261 CR3d 108, 113 (reversed on other grounds by *Pollock v. Tri-Modal Distribution Services, Inc.* (2021) 11 C5th 918, 281 CR3d 498)]

Cal. Prac. Guide Civ. Pro. Before Trial Ch. 10-C §10:94.1 (bold added).

This goal cannot be achieved with the current form of Plaintiff's separate statement. Besides the lack of physical organization required by CRC 3.1350(h), Plaintiff's separate statement is not limited to *material* facts that can be determined to correspond to required elements for any of the causes of action.

The paragraphs in a separate statement should be limited to facts that address the elements of a cause of action or an affirmative defense. (See Code Civ. Proc., § 437c, subd. (b)(1); rule 3.1350(a)(2), (d)(2).) The statute and Rules of Court do not preclude litigants from including background, nonmaterial information in their papers as long as they include a cite to the evidence, but nonmaterial facts should not be included in the separate statement. The point of the separate statement is not to craft a narrative, but to be a concise list of the material facts and the evidence that supports them. "The separate statement serves two important functions in a summary judgment proceeding: It notifies the parties which material facts are at issue, and it provides a convenient and expeditious vehicle permitting the trial court to hone in on the truly disputed facts." (*Collins v. Hertz Corp.* (2006) 144 Cal.App.4th 64, 74, 50 Cal.Rptr.3d 149.) There is

		nothing convenient or expeditious about the separate statements submitted in this case. <i>Beltran v. Hard Rock Hotel Licensing, Inc.</i> (2023) 97 Cal.App.5th 865, 875.
11.	2025-1526591 Logan vs. Hillis	The Demurrer brought by Cross-Defendant A Place for Rover, Inc. is overruled in its entirety. Initially, the Court grants judicial notice of the Cross-Complaint filed by Vicky Hillis on February 23, 2026, pursuant to Evidence Code section 452, subdivision (d). The request to take judicial notice of the Terms of Service offered by Cross-Defendant, however, is denied. “[T]he existence of a contract between private parties cannot be established by judicial notice under Evidence Code section 452, subdivision (h).” (<i>Gould v. Maryland Sound Industries, Inc.</i> (1995) 31 Cal.App.4th 1137, 1145; See also <i>The Travelers Indemnity Co. of Connecticut v. Navigators Specialty Ins. Co.</i> (2021) 70 Cal.App.5th 341, 354-355.) “As in this case, the ‘fact’ a contract exists between the parties is frequently the subject of reasonable dispute. Furthermore, when such disputes arise there are no ‘sources of reasonably indisputable accuracy’ such as treatises or encyclopedias to which the court can turn to resolve the issue. Rather, the court must rely on the testimony of the parties and their witnesses whose perceptions, memory and bias may be the subject of vigorous dispute” (<i>Gould v. Maryland Sound Industries, Inc.</i> (1995) 31 Cal.App.4th 1137, 1145.) Consequently, “before a trial court could find that the existence of a contract was not reasonably subject to dispute the court would have to engage in the kind of fact-finding appropriate for a trial on the merits, not for a hearing on demurrer.” (<i>Id.</i> at p. 1146.) “[A] court cannot simply look at a piece of paper and conclude as a matter of law it is a contract between the parties.” (<i>Ibid.</i>) Here, Cross-Complainant objects to Cross-Defendant’s Request for Judicial Notice. (See Opposition: 4:7-24.) While Cross-Complainant indicates she does “not deny for present purposes that her platform use was subject to Rover terms,” she nonetheless disputes assent to the <i>specific</i> terms offered by Cross-Defendant, within its Exhibit D. (<i>Ibid.</i>) As noted by Cross-Complainant, “Rover offers no declaration from a custodian or account-system witness establishing what version Hillis received, when and how she assented, or whether she opted out.” (Opposition: 4:13-15.) While Cross-Complainant proceeded to offer argument regarding the terms included within Exhibit D, Complainant nonetheless disputes having consented thereto and this dispute cannot be resolved on demurrer.